Vercel

Ask AI

# Data Processing Agreement

Last Updated March 31, 2023

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# ɔduction

ocessing Addendum ("**Addendum**") is entered into and is supplemental to, and made pursuant to, the Vercel Enterprise S
and Enterprise Terms and Conditions or other agreement executed between Vercel and Customer for Vercel's provision o
**nent**") as of the effective date of such Agreement ("**Effective Date**") and is by and between Vercel Inc., a Delaware corpor
nd the Customer that executed the Agreement. This Addendum applies to Vercel's Processing of Personal Data under the

nters into this Addendum on behalf of itself and, to the extent required under applicable Data Protection Laws and Regul
nd on behalf of its Affiliates to the extent such Affiliates are included and covered under the Agreement with Vercel. For t
this Addendum only, and except where indicated otherwise, the term "Customer" shall include Customer and Affiliates.

lum shall become legally binding upon Customer entering into the Agreement.

# initions

sed in this Addendum and not defined will have the meanings given to them in the applicable Agreement.

**e"** means any entity that directly or indirectly controls, is controlled by, or is under common control with the subject entity
oses of this definition, means direct or indirect ownership or control of more than 50% of the voting interest of the subje
**able Data Protection Laws"** means all applicable privacy and data protection laws and regulations and in each case, as a
ded, or replaced from time to time, including, without limitation, the EU General Data Protection Regulation (EU) 2016/67
ed Kingdom Data Protection Act 2018; the California Consumer Privacy Act of 2018 ("**CCPA**"); the Canadian Personal Info
on and Electronic Documents Act ("**PIPEDA**"); and the Australian Privacy Principles and the Australian Privacy Act (1988).
**t Data"** means the Personal Data that Vercel Processes as a controller, such as account information, payment informatio
e information.
**ner Data"** means the Personal Data that Vercel Processes on behalf of Customer.
**ubject"** means the identified or identifiable natural person who is the subject of Personal Data or the meaning as set fort
ble Data Protection Laws, including similar terms, such as "Consumer" as used in the CCPA.
**sing"** means any operation or set of operations which is performed on Personal Data or on sets of Personal Data, whethe
ed means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultatio
re by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destru
g all "processing" as defined in any Applicable Data Protection Laws.
**al Data"** means "personal data", "personal information", "personally identifiable information" or similar information defined
d by Applicable Data Protection Laws.
**y Incident"** means any confirmed unauthorized or unlawful breach of security that leads to the accidental or unlawful de
eration, unauthorized disclosure of or access to Customer Data Processed by Vercel and/or its Subprocessors in connect
ision of Services. Security Incidents do not include unsuccessful attempts or activities that do not compromise the secu
l Data, including unsuccessful log-in attempts, pings, port scans, denial of service attacks or other network attacks on fi
ed systems.
**e-Generated Data"** means usage data and metadata that is generated through the use of the Services, including data ge
the use of Support Services. This Addendum applies to Service-Generated Data to the extent Service-Generated Data c
l Data.
**es"** means collectively the PaaS and the Audit and Training Services, each as defined in the Agreement.
**cessor"** means any third-party authorized by Vercel to Process Customer Data in assistance with fulfilling its obligations
to providing Services under the Agreement or this Addendum.

# ıeral; Termination

ɪendum forms part of the Agreement and except as expressly set forth in this Addendum, the Agreement remains unchar
e and effect. If there is any conflict between this Addendum and the Agreement, this Addendum will govern.
ilities arising under this Addendum are subject to the limitations of liability in the Agreement.
ɪendum will be governed by and construed in accordance with governing law and jurisdiction provisions in the Agreemen
l otherwise by Applicable Data Protection Laws.
ɪendum will remain in effect until, and automatically terminate upon, deletion of Customer Data as described in this Adde

# ɑtionship of the Parties

ıs Processor. The parties acknowledge and agree that with regard to the Processing of Customer Data, Customer acts as
er (or processor) and Vercel is a processor. Vercel will process Customer Data under and in accordance with Customer's i
ılf of the controller) as outlined in Section 6 (Role and Scope of Processing).
ıs Controller. To the extent that any Service-Generated Data is considered Personal Data and as to any Contact Data, Ver
er with respect to such data and will Process such data in accordance with its Privacy Policy.

# npliance with Law

will comply with its obligations under Applicable Data Protection Laws with respect to its Processing of Customer Data.

# e and Scope of the Processing

er Responsibilities. Customer is solely responsible for obtaining and maintaining all the necessary consents prior to acce
uploading, processing, or storing Customer Data in the Service. Customer has provided, and will continue to provide, all r
ained, and will continue to obtain, all consents, permissions, and rights necessary under applicable laws, including Applic
on Laws, for Vercel to lawfully process Customer Data for the purposes contemplated by the Agreement. Customer has
applicable laws, rules, and regulations, including Applicable Data Protection Laws, in the collection and provision to Verc
essors of such Customer Data.
er Instructions. Vercel will Process Customer Data only in accordance with Customer's documented, lawful instructions
ontroller, except to the extent required by Applicable Data Protection Laws to which Vercel is subject or where Vercel be
r believes that Customer's instructions violate Applicable Data Protection Laws, in which case Vercel will notify Custome
into the Agreement, Customer instructs Vercel to Process Customer Data to provide the Services and pursuant to any o
ions given by Customer and acknowledged in writing by Vercel as constituting instructions for purposes of this Addendu
er acknowledges and agrees that such instruction authorizes Vercel to Process Customer Data (a) to perform its obligati
its rights under the Agreement; (b) to perform its legal obligations and to establish, exercise or defend legal claims in res
ent; and (c) does not conflict with the instructions given to the Customer by the controller to Process Customer Data.

# processing

er specifically authorizes Vercel to use its Affiliates as Subprocessors, and generally authorizes Vercel to engage Subpro
Customer Data. In such instances, Vercel: (i) will enter into a written agreement with each Subprocessor, imposing data
ons substantially similar to those set out in this Addendum to the extent applicable to the nature of the services provide

:essor; and (ii) remains liable for compliance with the obligations of this Addendum and for any acts or omissions of the :essor that cause Vercel to breach any of its obligations under this Addendum.
Vercel's Subprocessors, including their functions and locations, is available at https://security.vercel.com, and may be up ·om time to time in accordance with this Addendum.
er must email privacy@vercel.com or other method as communicated by Vercel to Customer in the future, to subscribe to ›processors that will be engaged. Vercel will notify Customer by updating the list of Subprocessors and, if Customer has es as set forth in the preceding sentence, via email. If, within five (5) calendar days after such notice, Customer notifies V :hat Customer objects to Vercel's appointment of a new Subprocessor based on reasonable data protection concerns, th uss such concerns in good faith and whether they can be resolved. If the parties are not able to mutually agree to a resol ncerns, Customer, as its sole and exclusive remedy, may terminate the Agreement for convenience with no refunds and C ain liable to pay any committed fees in an order form, order, statement of work or other similar ordering document.

# urity

**/ Measures.** Vercel will implement and maintain technical and organizational security measures designed to protect Cust curity Incidents and to preserve the security and confidentiality of the Customer Data, in accordance with Vercel's securi ds referenced in the Agreement ("**Security Measures**"). For more information on Vercel's security measures please see ou https://vercel.com/security.

**er Responsibility.**

stomer is responsible for reviewing the information made available by Vercel relating to data security and making an inde :ermination as to whether the Services meet Customer's requirements and legal obligations under Applicable Data Prote stomer acknowledges that the Security Measures provide a level of security appropriate to the risk in respect of the Cus d that they may be updated from time to time upon reasonable notice to Customer to reflect process improvements or ch ctices (but the modifications will not materially decrease Vercel's obligations as compared to those reflected in such ter ective Date).
stomer agrees that, without limitation of Vercel's obligations under this Section 8, Customer is solely responsible for its u ·vices, including (a) making appropriate use of the Services to ensure a level of security appropriate to the risk in respect stomer Data; (b) securing the account authentication credentials, systems and devices Customer uses to access the Ser :uring Customer's systems and devices that it uses with the Services; and (d) maintaining its own backups of Customer D

**/ Incident.** Upon becoming aware of a confirmed Security Incident, Vercel will notify Customer without undue delay unles ed by applicable law. A delay in giving such notice requested by law enforcement and/or in light of Vercel's legitimate nee ate or remediate the matter before providing notice will not constitute an undue delay. Such notice to Customer will desc ossible, (a) the details of the Security Incident as known or as reasonable requested by Customer, and (b) the steps take ıry and reasonable by Vercel, to mitigate the potential risks, to the extent that the remediation is within Vercel's reasonab prejudice to Vercel's obligations under this Section 8.c., Customer is solely responsible for complying with Security Incid :ion laws applicable to Customer and fulfilling any third-party notification obligations related to any Security Incidents. V :ion of or response to a Security Incident under this Section 8.c. will not be construed as an acknowledgment by Vercel o ty with respect to the Security Incident. These obligations will not apply to Security Incidents to the extent they are caus er.

# its and Reviews of Compliance

acknowledge that Customer must be able to assess Vercel's compliance with its obligations under Applicable Data Prote dendum, insofar as Vercel is acting as a processor on behalf of Customer.

**Audit Program.** Vercel uses external auditors to verify the adequacy of its security measures with respect to its processi er Data. Such audits (e.g., SOC 2 Type 2) are performed at least once annually at Vercel's expense by independent, third-p professionals at Vercel's selection and result in the generation of a confidential audit report ("**Audit Report**"). For more in l's security measures please see Schedule 2.

**er Audit.** Upon Customer's written request at reasonable intervals, and subject to reasonable confidentiality controls, Ver ailable to Customer a copy of Vercel's most recent Audit Report. Customer agrees that any audit rights granted by Applic on Laws will be satisfied by these Audit Reports.

# pact Assessments and Consultations

rovide reasonable cooperation to Customer, to the extent Customer does not otherwise have access to the relevant infor ation is available to Vercel, in connection with any data protection impact assessment (at Customer's expense only if suc cooperation will require Vercel to assign significant resources to that effort) or consultations with regulatory authorities a le Data Protection Laws.

# a Subject Requests

pon Customer's request (and at Customer's expense) provide Customer with such assistance as it may reasonably requir its obligations under Applicable Data Protection Laws to respond to requests from individuals to exercise their rights un Data Protection Laws (e.g., rights of data access, rectification, erasure, restriction, portability and objection) in cases wher onably fulfill such requests independently by using the self-service functionality of the Services. If Vercel receives a requ t in relation to the Processing of their Customer Data, Vercel will advise the Data Subject to submit their request to Cust ill be responsible for responding to any such request.

# turn or Deletion of Customer Data

ers may delete or export Customer Data at any time while using the Services in a manner consistent with the functionali Termination or expiration of the Agreement serves as instruction for Vercel to delete all Customer Data within a commer ble timeframe.

standing the foregoing, Customer understands that Vercel may retain Customer Data if required by law, and such data w to the requirements of this Addendum.

# ernational Provisions

**ing in the United States.** Customer acknowledges that, as of the Effective Date, Vercel's primary processing facilities are States. Notwithstanding the foregoing, Customer acknowledges that Vercel may in connection with the provision of Servi fer and process Customer Data to and in the United States and anywhere else in the world where Vercel or its Subproces data processing operations. Vercel will ensure such transfers are made in compliance with the requirements of Applicab on Laws and this Addendum.

**tion Specific Terms.** To the extent that Vercel Processes Customer Data originating from and protected by Applicable Da on Laws in one of the Jurisdictions listed in Schedule 4 (Jurisdiction Specific Terms), then the terms specified therein wi plicable jurisdiction(s) will apply in addition to the terms of this Addendum.

**order Data Transfer Mechanism.** To the extent that Customer's use of the Services requires an onward transfer mechani

transfer personal data from a jurisdiction (i.e., the European Economic Area ("**EEA**"), the United Kingdom ("**UK**"), Switzerla
isdiction listed in Schedule 3) to Vercel located outside of that jurisdiction (a "**Transfer Mechanism**"), the terms and cond
e 3 (Cross Border Transfer Mechanisms) will apply.

# lule 1: Subject Matter & Details of Processing

## and Purpose of the Processing

process Personal Data as necessary to provide the Services under the Agreement. Vercel does not sell Customer Data (or within such Customer Data) and does not share such end users' information with third parties for compensation or for th business interests.

**er Data.** Vercel will process Customer Data as a processor in accordance with Customer's instructions as outlined in Sec er Instructions) of this Addendum.
**-Generated Data and Contact Data.** Vercel will process Service-Generated Data and Contact Data as a controller for the in Section 4.b (Vercel as Controller) of this Addendum.

## ssing Activities

**er Data.** Customer Data will be subject to the following basic processing activities: the provision of Services and disclos nce with the Agreement and/or as compelled by applicable laws.
**-Generated Data and Contact Data.** Personal Data contained in Service-Generated Data and/or Contact Data will be sub g processing activities by Vercel: Vercel may use Service-Generated Data and/or Contact Data to operate, improve and s s, to provide marketing and service-related messages and for other lawful business practices, such as analytics, benchm g.

## on of the Processing

or which Personal Data will be retained and the criteria used to determine that period is as follows:

**er Data.** Prior to the termination of the Agreement, Vercel will Process Customer Data in accordance with sections 3 and um.
**-Generated Data and Contact Data.** Upon termination of the Agreement, Vercel may retain, use, and disclose Service-Ge d/or Contact Data for the purposes set forth above in Section 2.b (Service-Generated Data and Contact Data) of this Sch to the confidentiality obligations set forth in the Agreement. Vercel will anonymize or delete Personal Data contained wit -Generated Data and/or Contact Data when Vercel no longer requires it for the purpose set forth in Section 2.b (Service- d/or Contact Data) of this Schedule 1.

## ories of Data Subjects

**er Data.** Individuals whose Personal Data is included in Customer Data.
**-Generated Data and Contact Data.** Customer's authorized users with access to a Vercel account, customers, suppliers,

## ories of Personal Data

### ories of Personal Data

er Data. The categories of Customer Data are: any Customer Data that Customer, or third parties acting on their behalf, r
l in connection with the performance of the Service, to the extent of which is exclusively determined and controlled by th
er, such as IP address and system configuration information.
-Generated Data and Contact Data. Vercel processes Personal Data within Service-Generated Data and/or Contact Data
mail address, phone number, account preferences, and content of communications with Support Services.

### tive Data or Special Categories of Data

er Data. Customers are prohibited from including sensitive data or special categories of data in Customer Data.
-Generated Data and Contact Data. Sensitive data is not contained in Service-Generated Data and/or Contact Data.

## lule 2: Technical & Organizational Security Measures

cable, this Schedule 2 will serve as Annex II to the Standard Contractual Clauses. The following provides more informatic
nnical and organizational security measures set forth below.

### ures of pseudonymization and encryption of personal data.

tains Customer Data in an encrypted format at rest using Advanced Encryption Standard (AES-256) and in transit (TLS 1.

### ures for ensuring ongoing confidentiality, integrity, and availability and resilience of ing systems and services.

stomer agreements contain strict confidentiality obligations. Additionally, Vercel requires Subprocessors to sign confident
hat are substantially similar to those contained in Vercel's Customer agreements. All employees (and contractors) are bou
rnal policies regarding maintaining the confidentiality of Customer Data and are contractually obligated to comply with t

s operate on Amazon Web Services ("AWS"), Microsoft Azure ("Azure"), and Google Cloud Platform ("GCP") and are protec
l environmental controls of Amazon and Google, respectively. The infrastructure for the Vercel Services spans multiple, fa
t AWS availability zones in geographic regions physically separated from one another, supported by various tools and pro
gh availability of services.

rms regular backups of Customer Data, which is hosted in AWS, Microsoft Azure, and GCP data centers. Backups are glo
or resiliency against regional disasters and periodically tested by the Vercel engineering team.

complete mandatory training annually, which covers privacy and data protection, confidentiality, social engineering, passw
l information security.

### ures for ensuring the ability to restore availability and access to Personal Data in a ti in the event of a physical or technical incident.

rms regular backups of Customer Data, which is hosted in AWS, Microsoft Azure, and GCP data centers. Backups are ret
across multiple availability zones and encrypted in transit and at rest.

ı business continuity and disaster recovery plan that incorporates input from periodic risk assessments, vulnerability scar
sis.

## sses for regular testing, assessing and evaluating the effectiveness of technical an
## ational measures in order to ensure the security of processing.

tains a risk-based assessment security program. The framework for Vercel's security program includes administrative,
ıal, technical, and physical safeguards reasonably designed to protect the Services and confidentiality, integrity, and avai
ata. Vercel's security program is intended to be appropriate to the nature of the Services and the size and complexity of
erations.

ı separate and dedicated security team that manages Vercel's security program. This team facilitates and supports indep
ıssessments performed by third parties to provide independent feedback on the operating effectiveness of the informatic
g., SOC 2 Type 2, penetration testing, and vulnerability scanning).

urity governance program covers: Policies and Procedures, Asset Management, Access Management, Data Handling, Enc
Monitoring, Password Management, Personnel Security, Resiliency, Responsible Disclosure, Risk Assessment, Vendor Risk
ıt, Vulnerability, SDLC, Incident Response, Business Continuity & Crisis Management, Acceptable Use and Code of Condu
security policies and standards are reviewed and approved by management at least annually and are made available to a

nanaged at the highest levels of the company, with security and technology leadership meeting with executive managem
discuss issues and coordinate company-wide security initiatives.

## ures for user identification and authorization.

onnel are required to use unique user access credentials and passwords for authorization. Vercel follows the principles of
ough role-based and time-based access models when provisioning system access. Vercel personnel are authorized to ac
ata based on their job function, role and responsibilities, and such access requires approval prior to access provisioning.
ustomer Data is promptly removed upon role change or termination.

commercially reasonable practices to identify and authenticate users who attempt to access Vercel systems.

## ures for the protection of data during transmission.

ata is encrypted when in transit between Customer and the Vercel Services.

## ıres for the protection of data during storage.

ata is stored encrypted using AES-256. Vercel uses AWS Key Management System ("**KMS**") to encrypt data in our infrastr
a secure and resilient service that uses FIPS 140-2 validated hardware security modules to protect keys that cannot be
vice by anyone or transmitted beyond the AWS regions where they were created. AWS log-in credentials and private keys
ce are for Vercel's internal use only.

## ures for ensuring physical security of locations at which personal data are processe

emote-first organization with limited physical presence globally. As needed, physical security controls for office space ar
-working office provider, which manages visitors, building entrances, CCTVs (closed circuit televisions), and overall office

s operate on AWS, Microsoft, and GCP and are protected by the security and environmental controls of Amazon, Microsof

ɔectively.

ɔrmation about AWS security is available at:

ɜws.amazon.com/security/
ws.amazon.com/security/sharing-the-security-responsibility/

C Reports, please see:

ɜws.amazon.com/compliance/soc-faqs/

ɔrmation about Azure security is available at:

docs.microsoft.com/en-us/azure/security/fundamentals/physical-security

ɔrmation about GCP security is available at:

cloud.google.com/docs/tutorials#security

## ures for ensuring events logging.

tors access to applications, tools, and resources that process or store Customer Data, including cloud services. Monitorir
s is centralized by the security team. Log activities are investigated when necessary and escalated appropriately.

/ metrics are available to Customers within the Services. For further information, visit
el.com/docs/observability/activity-log.

## sures for ensuring systems configuration, including default configuration.

es Secure Software Development Lifecycle (Secure SDLC) standards to perform numerous security-related activities for
ross different phases of the product creation lifecycle from requirements gathering and product design all the way throug
. These activities include, but are not limited to, the performance of (a) internal security reviews before new Services are
ıal penetration testing by independent third parties.

res to a change management process to administer changes to the production environment for the Services, including cl
ıg software, applications, and systems. Monitors are in place to notify the security team of changes made to critical infra
s that do not adhere to the change management processes.

## ures for internal IT and IT security governance and management.

tains a risk-based assessment security program. The framework for Vercel's security program includes administrative,
ıal, technical, and physical safeguards reasonably designed to protect the Services and confidentiality, integrity, and avai
ata. Vercel's security program is intended to be appropriate to the nature of the Services and the size and complexity of
erations.

ı separate and dedicated Information Security team that manages Vercel's security program. This team facilitates and su
t audits and assessments performed by third parties to provide independent feedback on the operating effectiveness of
security program (e.g., SOC 2 Type 2, penetration testing, and vulnerability scanning).

urity governance program covers Policies and Procedures, Asset Management, Access Management, Data Handling, Enc
Monitoring, Password Management, Personnel Security, Resiliency, Responsible Disclosure, Risk Assessment, Vendor Risk
ıt, Vulnerability, SDLC, Incident Response, Business Continuity & Crisis Management, Acceptable Use and Code of Condu
security policies and standards are reviewed and approved by management at least annually and are made available to a

nanaged at the highest levels of the company, with security and technology leadership meeting with executive managem discuss issues and coordinate company-wide security initiatives.

## sures for certifications/assurance of processes and products.

ucts various third-party audits to attest to various frameworks including SOC 2 Type 2 and annual application penetratio

and GCP have achieved: SOC 1, 2, and 3; ISO 27001, 27017, 27018, 27701, and 9001; Cloud Security Alliance Security, Tru ınd Risk (CSA STAR); FedRAMP; and use FIPS 140-2 validated cryptographic modules, in addition to meeting compliance ıer legal, security, and privacy frameworks. Further information about these providers' security practices can be found on vebsites.

## sures for ensuring data minimization.

omers unilaterally determine what Customer Data they route through the Vercel Services and how the Services are confi . operates on a shared responsibility model. Vercel provides tools within the Services that gives Customers control over e the platform and enables Customers with the ability to block data at the Source level. Additionally, Vercel allows Custom suppress Customer Data on demand.

## sures for ensuring data quality.

ı three-fold approach for ensuring data quality. These measures include: (i) unit testing to ensure the quality of logic usec volume testing to ensure the code is able to scale, and (iii) daily end-to-end testing to ensure that the input values matc el applies these measures across the board, both to ensure the quality of any Service-Generated Data that Vercel collec the Vercel Services are operating in accordance with the documentation.

Customer chooses what Customer Data they route through the Vercel Services and how the Services are configured. As ates on a shared responsibility model. Vercel ensures that data quality is maintained from the time a Customer sends Cu e Services and until that Customer Data leaves Vercel to flow to a downstream destination.

ı process that allows individuals to exercise their privacy rights, as described in Vercel's Privacy Notice available at el.com/legal/privacy-policy.

## sures for ensuring limited data retention.

omers unilaterally determine what Customer Data they route through the Vercel Services and how the Services are confi . operates on a shared responsibility model. Customers have the ability to delete Customer Data via the self-service func s. Vercel will, within a commercially reasonable timeframe after request by Customer following the termination or expirat delete all Customer Data from Vercel's systems, unless required by law.

## sures for ensuring accountability.

ıdopted measures for ensuring accountability, such as implementing data protection policies across the business, publish ırmation Security Policy (available at https://security.vercel.com), maintaining documentation of processing activities, anc ıg Security Incidents involving Personal Data. Vercel conducts regular third-party audits to ensure compliance with our p ndards.

## ures for allowing data portability and ensuring erasure.

stomers have direct relationships with their end users and are responsible for responding to requests from their end user

their rights under Applicable Data Protection Laws.

elf-service functionality that allows Customers to delete and suppress their Customer Data.

ifies in the Addendum that it will provide assistance to such Customer as may reasonably be required to comply with Cus
under Applicable Data Protection Laws to respond to requests from individuals to exercise their rights under Applicable D
aws (e.g., rights of data access, rectification, erasure, restriction, portability and objection). If Vercel receives a request fro
elation to their Customer Data, Vercel will advise the Data Subject to submit their request to Customer, and Customer wi
for responding to any such request.

process that allows individuals to exercise their privacy rights, as described in Vercel's Privacy Notice available at
el.com/legal/privacy-policy.

## ransfers to [sub]-processors, also describe the specific technical and organisational
## es to be taken by the [sub]-processor to be able to provide assistance to the control
## sfers from a processor to a [sub]-processor, to the data exporter.

l engages a Subprocessor under this Addendum, Vercel and the Subprocessor enter into an agreement with data protect
y similar to those contained herein. Each Subprocessor agreement must ensure that Vercel is able to meet its obligations
addition to implementing technical and organisational measures to protect personal data, Subprocessors must a) notify
a Security Incident so Vercel may notify Customer; b) delete data when instructed by Vercel in accordance with Custom
to Vercel; c) not engage additional Subprocessors without authorization; d) not change the location where data is proces
a in a manner which conflicts with Customer's instructions to Vercel.

# lule 3: Cross Border Data Transfer Mechanism

## ions

**rd Contractual Clauses"** means the 2021 Standard Contractual Clauses approved by the European Commission in decisi
4.
**A"** means the UK international data transfer addendum (Schedule 5).

## TA

nsfers from the United Kingdom, the UK IDTA will be deemed entered into (and incorporated into this Addendum by refere
h the Standard Contractual Clauses as set forth in Section 3 of this Schedule below.

## 021 Standard Contractual Clauses

nsfers from the EEA, the UK, and Switzerland that are subject to the Standard Contractual Clauses, the Standard Contrac
apply in the following manner:

**One (Controller to Controller)** will apply where Customer is a controller of Service-Generated Data and/or Contact Data
roller of Service-Generated Data and/or Contact Data.

**Two (Controller to Processor)** will apply where Customer is a controller of Service-Generated Data and/or Contact Data
essor of Service-Generated Data and/or Contact Data.

**Three (Processor to Processor)** will apply where Customer is a processor of Service-Generated Data and/or Contact Dat
; a processor of Service-Generated Data and/or Contact Data.

ı Module, where applicable:

:lause 7, the option docking clause will not apply;
Clause 9, Option 2 will apply, and the time period for prior notice of Subprocessor changes will be as set forth in Section 7
processing) of this Addendum;
Clause 11, the optional language will not apply;
Clause 17 (Option 1), the 2021 Standard Contractual Clauses will be governed by Irish law.
Clause 18(b), disputes will be resolved before the courts of Ireland;
Annex I, Part A:

**ata Exporter**: Customer and authorized Affiliates of Customer.
**ontact Details**: Customer's account owner email address, or to the email address(es) for which Customer elects to receiv
mmunications.
**ata Exporter Role**: The Data Exporter's role is outlined in Section 4 of this Addendum.
**gnature & Date**: By entering into the Agreement, Data Exporter is deemed to have signed these Standard Contractual Cla
corporated herein, including their Annexes, as of the Effective Date of the Agreement.
**ata Importer**: Vercel Inc.
**ontact Details**: Vercel Privacy - privacy@vercel.com
**ata Importer Role**: The Data Importer's role is outlined in Section 4 of this Addendum.
**gnature & Date**: By entering into the Agreement, Data Importer is deemed to have signed these Standard Contractual Cla
corporated herein, including their Annexes, as of the Effective Date of the Agreement.

Annex I, Part B: The categories of data subjects are described in Schedule 1, Section 4.

ıe sensitive data transferred is described in Schedule 1, Section 6.
ıe frequency of the transfer is a continuous basis for the duration of the Agreement.
ıe nature of the processing is described in Schedule 1, Section 1.
ıe purpose of the processing is described in Schedule 1, Section 1.
ıe period of the processing is described in Schedule 1, Section 3.
r transfers to Subprocessors, the subject matter, nature, and duration of the processing is outlined at https://security.ver

ı Annex I, Part C: The Irish Data Protection Commission will be the competent supervisory authority.
hedule 2 serves as Annex II of the Standard Contractual Clauses.

specific modules, the parties agree that the following modules apply, as the circumstances of the transfer may apply:

er-Controller - Module One
er-Processor - Module Two
or-Processor - Module Three

:ent there is any conflict between the Standard Contractual Clauses or the UK IDTA and any other terms in this Addendur
(Jurisdiction Specific Terms), the provisions of the Standard Contractual Clauses or the UK IDTA, as applicable, will preva

# lule 4: Jurisdiction Specific Terms

## nia

nition of **"Applicable Data Protection Laws"** includes the California Consumer Privacy Act ("CCPA")

nition of "**Applicable Data Protection Laws**" includes the California Consumer Privacy Act ("**CCPA**").
ns "**business**", "**commercial purpose**", "**service provider**", "**sell**" and "**personal information**" have the meanings given in th
pect to Customer Data, Vercel is a service provider under the CCPA with the Customer as the business.
vill not (a) sell Customer Data; (b) retain, use or disclose any Customer Data for any purpose other than for the specific pu
g the Services, including retaining, using or disclosing the Customer Data for a commercial purpose other than providing
s; or (c) retain, use or disclose the Customer Data outside of the direct business relationship between Vercel and Custom
ies acknowledge and agree that the Processing of Customer Data authorized by Customer's instructions described in Se
lendum is integral to and encompassed by Vercel's provision of the Services and the direct business relationship betwee

standing anything in the Agreement or any Order Form entered in connection therewith, the parties acknowledge and ag
access to Customer Data does not constitute part of the consideration exchanged by the parties in respect of the Agree
xtent that any Service-Generated Data is considered Personal Data and/or as to Contact Data, pursuant to the CCPA, Ve
s under the CCPA with respect to such data and will Process such data in accordance with its Privacy Policy.
nplements and maintains reasonable security and privacy practices appropriate to the nature of the personal informatior
es as set forth in section 8 of this Addendum.

nition of "**Applicable Data Protection Laws**" includes the General Data Protection Regulation (EU 2016/679) ("**GDPR**").

ercel engages a Subprocessor under Section 7 (Subprocessing), it will:

uire any appointed Subprocessor to protect Customer Data to the standard required by Applicable Data Protection Laws
luding the same data protection obligations referred to in Article 28(3) of the GDPR, in particular providing sufficient guar
plement appropriate technical and organizational measures in such a manner that the processing will meet the requireme
PR; and
uire any appointed Subprocessor to agree in writing to only process data in a country that the European Union has decla
"adequate" level of protection; or to only process data on terms equivalent to the Standard Contractual Clauses.

**enalties**. Notwithstanding anything to the contrary in this Addendum or in the Agreement (including, without limitation, e
fication obligations), neither party will be responsible for any GDPR fines issued or levied under Article 83 of the GDPR ag
rty by a regulatory authority or governmental body in connection with such other party's violation of the GDPR.

## erland

nition of "**Applicable Data Protection Laws**" includes the Swiss Federal Act on Data Protection.
ercel engages a Subprocessor under Section 7 (Subprocessing), it will:

uire any appointed Subprocessor to protect Customer Data to the standard required by Applicable Data Protection Laws
luding the same data protection obligations referred to in Article 28(3) of the GDPR, in particular providing sufficient guar
plement appropriate technical and organizational measures in such a manner that the processing will meet the requireme
PR; and
uire any appointed Subprocessor to agree in writing to only process data in a country that the European Union has decla
"adequate" level of protection; or to only process data on terms equivalent to the Standard Contractual Clauses.

## d Kingdom

ces in this Addendum to GDPR will to that extent be deemed to be references to the corresponding laws of the United Ki
ng the UK GDPR and Data Protection Act 2018).
ercel engages a Subprocessor under Section 7 (Subprocessing), it will:

uire any appointed Subprocessor to protect Customer Data to the standard required by Applicable Data Protection Laws

uire any appointed Subprocessor to protect Customer Data to the standard required by Applicable Data Protection Laws
luding the same data protection obligations referred to in Article 28(3) of the GDPR, in particular providing sufficient guar
plement appropriate technical and organizational measures in such a manner that the processing will meet the requireme
PR; and
uire any appointed Subprocessor to agree in writing to only process data in a country that the European Union has decla
"adequate" level of protection; or to only process data on terms equivalent to the Standard Contractual Clauses and the

## alia

lefinition of **"Applicable Data Protection Laws"** includes the Australian Privacy Principles and the Australian Privacy Act (
g applies:

e definition of "Personal Data" includes "Personal Information" as defined under the Australian Privacy Principles and the
vacy Act (1988).
e definition of "sensitive data" includes "Sensitive Information" as defined under the Australian Privacy Principles and the
vacy Act (1988).

## da

lefinition of **"Applicable Data Protection Laws"** includes the Canadian Personal Information Protection and Electronic Do
**PEDA"**), the following applies:

cel's Subprocessors, as described in this Addendum, are third parties under the PIPEDA, with whom Vercel has entered i
tten contract that includes terms substantially similar to this Addendum. Vercel has conducted appropriate due diligence
processors.
cel will implement technical and organizational measures as set forth in Schedule 2.

# lule 5: UK IDTA

lum has been issued by the Information Commissioner for Parties making Restricted Transfers. The Information Commiss
at it provides Appropriate Safeguards for Restricted Transfers when it is entered into as a legally binding contract.

# Tables

## Parties

| | the Effective Date of the Agreement | |
|---|---|---|
| | **Exporter (who sends the Restricted Transfer)** | **Importer (who receives the Restricted Transfer)** |
| **ails** | See the Agreement | Full legal name: Vercel Inc.<br>Trading name (if different): n/a<br>Main address (if a company registered address): 440 Ave #4133, Covina, CA 91723<br>Official registration number (if any) (company number |

| | | |
|---|---|---|
| | | Official registration number (if any) (company number or identifier): Delaware, 5857312 |
| **t** | See the Agreement | Contact details including email: privacy@vercel.com |
| **f required for the f Section 2)** | By entering into the Agreement, Exporter is deemed to have signed this Addendum. | By entering into the Agreement, Importer is deemed t signed this Addendum. |

## Selected SCCs, Modules and Selected Clauses

| | |
|---|---|
| **EU SCCs** | The Approved EU SCCs, including the Appendix Information and with only the following modules, clauses or optional provision Approved EU SCCs brought into effect for the purposes of this Addendum: See Schedule 3, Section 3 |

ta received from the Importer may be combined with personal data collected by the Exporter.

## Appendix Information

**nformation"** means the information which must be provided for the selected modules as set out in the Appendix of the A than the Parties), and which for this Addendum is set out in:

| | |
|---|---|
| | List of Parties: See Table 1 |
| | Description of Transfer: See Schedule 1 |
| | Technical and organisational measures including technical and organisational measures to ensure the security of the data: See Schedu |
| | List of Sub processors (Modules 2 and 3 only): See https://security.vercel.com |

## Ending this Addendum when the Approved Addendum Changes

| | |
|---|---|
| **Addendum when the Approved Addendum changes** | Which Parties may end this Addendum as set out in Section 19: Importer |

# : Mandatory Clauses

o this Addendum

arty agrees to be bound by the terms and conditions set out in this Addendum, in exchange for the other Party also agre

/ this Addendum.

ıgn Annex 1A and Clause 7 of the Approved EU SCCs require signature by the Parties, for the purpose of making Restricte
s, the Parties may enter into this Addendum in any way that makes them legally binding on the Parties and allows data su
:heir rights as set out in this Addendum. Entering into this Addendum will have the same effect as signing the Approved E
part of the Approved EU SCCs.

### ɔn of this Addendum

this Addendum uses terms that are defined in the Approved EU SCCs those terms shall have the same meaning as in th
s. In addition, the following terms have the following meanings:

| | |
|---|---|
| | This International Data Transfer Addendum which is made up of this Addendum incorporating the Addendum EU SCCs. |
| | The version(s) of the Approved EU SCCs which this Addendum is appended to, as set out in Table 2, including the Appendix Information. |
| | As set out in Table 3. |
| | The standard of protection over the personal data and of data subjects' rights, which is required by UK Data Protection Laws when you are m Restricted Transfer relying on standard data protection clauses under Article 46(2)(d) UK GDPR. |
| | The template Addendum issued by the ICO and laid before Parliament in accordance with s119A of the Data Protection Act 2018 on 2 Februar it is revised under Section 18. |
| J | The Standard Contractual Clauses set out in the Annex of Commission Implementing Decision (EU) 2021/914 of 4 June 2021. |
| | The Information Commissioner. |
| | A transfer which is covered by Chapter V of the UK GDPR. |
| | The United Kingdom of Great Britain and Northern Ireland. |
| | All laws relating to data protection, the processing of personal data, privacy and/or electronic communications in force from time to time in t including the UK GDPR and the Data Protection Act 2018. |
| | As defined in section 3 of the Data Protection Act 2018. |

ddendum must always be interpreted in a manner that is consistent with UK Data Protection Laws and so that it fulfils th
n to provide the Appropriate Safeguards.

ɔrovisions included in the Addendum EU SCCs amend the Approved SCCs in any way which is not permitted under the A
the Approved Addendum, such amendment(s) will not be incorporated in this Addendum and the equivalent provision of
d EU SCCs will take their place.

e is any inconsistency or conflict between UK Data Protection Laws and this Addendum, UK Data Protection Laws applie

neaning of this Addendum is unclear or there is more than one meaning, the meaning which most closely aligns with UK

on Laws applies.

ferences to legislation (or specific provisions of legislation) means that legislation (or specific provision) as it may change
udes where that legislation (or specific provision) has been consolidated, re-enacted and/or replaced after this Addendur
nto.

igh Clause 5 of the Approved EU SCCs sets out that the Approved EU SCCs prevail over all related agreements between
es agree that, for Restricted Transfers, the hierarchy in Section 10 will prevail.

e there is any inconsistency or conflict between the Approved Addendum and the Addendum EU SCCs (as applicable), th
im overrides the Addendum EU SCCs, except where (and in so far as) the inconsistent or conflicting terms of the Addend
ovides greater protection for data subjects, in which case those terms will override the Approved Addendum.

e this Addendum incorporates Addendum EU SCCs which have been entered into to protect transfers subject to the Gene
on Regulation (EU) 2016/679 then the Parties acknowledge that nothing in this Addendum impacts those Addendum EU

**on of and changes to the EU SCCs**

Addendum incorporates the Addendum EU SCCs which are amended to the extent necessary so that:

ther they operate for data transfers made by the data exporter to the data importer, to the extent that UK Data Protectior
/ to the data exporter's processing when making that data transfer, and they provide Appropriate Safeguards for those da
sfers;
ions 9 to 11 override Clause 5 (Hierarchy) of the Addendum EU SCCs; and
Addendum (including the Addendum EU SCCs incorporated into it) is (1) governed by the laws of England and Wales and (
ute arising from it is resolved by the courts of England and Wales, in each case unless the laws and/or courts of Scotland
hern Ireland have been expressly selected by the Parties.

s the Parties have agreed alternative amendments which meet the requirements of Section 12, the provisions of Section

nendments to the Approved EU SCCs other than to meet the requirements of Section 12 may be made.

ollowing amendments to the Addendum EU SCCs (for the purpose of Section 12) are made:

rences to the "Clauses" means this Addendum, incorporating the Addendum EU SCCs;

ause 2, delete the words:

, with respect to data transfers from controllers to processors and/or processors to processors, standard contractual clau
uant to Article 28(7) of Regulation (EU) 2016/679";

se 6 (Description of the transfer(s)) is replaced with:

details of the transfers(s) and in particular the categories of personal data that are transferred and the purpose(s) for wh
sferred) are those specified in Annex I.B where UK Data Protection Laws apply to the data exporter's processing when ma
sfer.";

se 8.7(i) of Module 1 is replaced with:

to a country benefiting from adequacy regulations pursuant to Section 17A of the UK GDPR that covers the onward trans

se 8.8(i) of Modules 2 and 3 is replaced with:

onward transfer is to a country benefiting from adequacy regulations pursuant to Section 17A of the UK GDPR that cover
ard transfer;"

rences to "Regulation (EU) 2016/679", "Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 Ap
protection of natural persons with regard to the processing of personal data and on the free movement of such data (Gen
ection Regulation)" and "that Regulation" are all replaced by "UK Data Protection Laws". References to specific Article(s) c
ulation (EU) 2016/679" are replaced with the equivalent Article or Section of UK Data Protection Laws;

rences to Regulation (EU) 2018/1725 are removed;

rences to the "European Union", "Union", "EU", "EU Member State", "Member State" and "EU or Member State" are all repla
UK";

eference to "Clause 12(c)(i)" at Clause 10(b)(i) of Module one, is replaced with "Clause 11(c)(i)";

se 13(a) and Part C of Annex I are not used;

competent supervisory authority" and "supervisory authority" are both replaced with the "Information Commissioner";

ause 16(e), subsection (i) is replaced with:

Secretary of State makes regulations pursuant to Section 17A of the Data Protection Act 2018 that cover the transfer of
to which these clauses apply;";

se 17 is replaced with:

se Clauses are governed by the laws of England and Wales.";

se 18 is replaced with:

dispute arising from these Clauses shall be resolved by the courts of England and Wales. A data subject may also bring l
eedings against the data exporter and/or data importer before the courts of any country in the UK. The Parties agree to s
selves to the jurisdiction of such courts."; and

ootnotes to the Approved EU SCCs do not form part of the Addendum, except for footnotes 8, 9, 10 and 11.

### ts to this Addendum

arties may agree to change Clauses 17 and/or 18 of the Addendum EU SCCs to refer to the laws and/or courts of Scotlar
Ireland.

Parties wish to change the format of the information included in Part 1: Tables of the Approved Addendum, they may do
to the change in writing, provided that the change does not reduce the Appropriate Safeguards.

time to time, the ICO may issue a revised Approved Addendum which:

es reasonable and proportionate changes to the Approved Addendum, including correcting errors in the Approved Adden
or
cts changes to UK Data Protection Laws; The revised Approved Addendum will specify the start date from which the cha
oved Addendum are effective and whether the Parties need to review this Addendum including the Appendix Information
endum is automatically amended as set out in the revised Approved Addendum from the start date specified.

ICO issues a revised Approved Addendum under Section 18, if any Party selected in Table 4 "Ending the Addendum wher
d Addendum changes", will as a direct result of the changes in the Approved Addendum have a substantial, disproportion
rable increase in:

rect costs of performing its obligations under the Addendum; and/or

sk under the Addendum,

ther case it has first taken reasonable steps to reduce those costs or risks so that it is not substantial and disproportiona
y may end this Addendum at the end of a reasonable notice period, by providing written notice for that period to the othe
ıe start date of the revised Approved Addendum.

Parties do not need the consent of any third party to make changes to this Addendum, but any changes must be made in
ıce with its terms.

## Part 2 Mandatory Clauses:

> Part 2: Mandatory Clauses of the Approved Addendum, being the template Addendum B.1.0 issued by the ICO and laid before Parliament in acc
> with s119A of the Data Protection Act 2018 on 2 February 2022, as it is revised under Section 18 of those Mandatory Clauses.

GET STARTED
Templates
Supported frameworks
Marketplace
Domains

BUILD
Next.js on Vercel
Turborepo
v0

SCALE
Content delivery network
Fluid compute
CI/CD
Observability
AI Gateway NEW
Vercel Agent NEW

SECURE
Platform security
Web Application Firewall
Bot management
BotID
Sandbox NEW

RESOURCES
Pricing
Customers
Enterprise
Articles
Startups
Solution partners

LEARN
Docs
Blog
Changelog
Knowledge Base
Academy
Community

FRAMEWORKS
Next.js
Nuxt
Svelte
Nitro
Turbo

SDKS
AI SDK
Workflow DevKit NEW
Flags SDK
Chat SDK
Streamdown AI NEW

USE CASES
Composable commerce
Multi-tenant platforms
Web apps
Marketing sites
Platform engineers
Design engineers

COMPANY
About
Careers
Help
Press
Legal
Privacy Policy

COMMUNITY
Open source program
Events
Shipped on Vercel
GitHub
LinkedIn
X
YouTube

LOADING STATUS…